



Notification Waiver Determination

Sims – business assets of OneStop Metal Recycling in TAS

Acquisition	Australian Metal Recycling Network Pty Ltd (AMRN) applied for a notification waiver in respect of its proposed acquisition of 100% of the business assets of OneStop Metal Recycling (Tas) Pty Ltd (OneStop), as described in the transaction documents provided as part of the application (the Acquisition). The assets proposed to be acquired comprise the operating business conducted by OneStop, including its scrap metal recycling sites in Glenorchy and Cooee in Tasmania, together with plant and equipment, inventory, business contracts, intellectual property, goodwill and other assets used in the operation of the business.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.
Date of determination	15 September 2026

Parties to the Acquisition	The acquirer, AMRN, is a wholly owned subsidiary of Sims Limited (Sims). Sims currently operates a scrap metal recycling facility at Bell Bay, north of Launceston, Tasmania. The vendor, OneStop, operates scrap metal recycling sites in Glenorchy in southern Tasmania and Cooee on the north-west coast of Tasmania. Both Sims and OneStop are active in the acquisition, processing and sale of ferrous and non-ferrous scrap metal in Tasmania.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the Act. Based on the information provided in the application, including the parties' revenue in Australia, the ACCC considers that, if the Acquisition were put into effect, the notification thresholds would be met. Based on the information currently before it, the ACCC is unable to reach a view that the Acquisition would not be likely to raise competition issues in any market based on the information provided, given: there is horizontal overlap between Sims and OneStop in the acquisition of ferrous and non-ferrous scrap metal and the supply of processed ferrous and non-ferrous scrap metal in Tasmania

	b. the parties' combined share in the acquisition of ferrous and non-ferrous scrap metal and the supply of processed ferrous and non-ferrous scrap metal may be significant c. there is uncertainty regarding the level of competitive constraint likely to be exerted from alternative acquirers of ferrous and non-ferrous scrap metal and suppliers of processed ferrous and non-ferrous scrap metal in Tasmania. The ACCC considers that these potential competition issues warrant consideration through the notification process, including via consultation with third parties. Given the above, the ACCC has determined not to make the notification waiver determination applied for. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
--	--

Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act